

KESTRELMOOR COMMERCE SYSTEMS, INC.
SMALL BUSINESS SERVICES AGREEMENT
Standard Terms, Version 4.2

This Small Business Services Agreement (the "Agreement") is between Kestrelmoor Commerce Systems, Inc., a Delaware corporation ("Kestrelmoor," "we" or "us"), and the business named on the Order Form ("Customer" or "you"). By signing the Order Form or clicking "I Accept," you agree to these terms. These are our standard terms for all small business customers. No change to them is valid unless it is set out in a written amendment signed by an officer of Kestrelmoor.

1. DEFINITIONS

1.1 "Services" means the Kestrelmoor point-of-sale software, online booking tools, card payment processing and related support described on the Order Form.

1.2 "Order Form" means the signup form, online or on paper, that lists the Services, the plan and the Fees you selected.

1.3 "Fees" means the subscription charges, processing charges and other amounts listed on the Order Form and in the Fee Schedule published on our website.

1.4 "Effective Date" means the date you sign the Order Form or click "I Accept," whichever comes first.

2. THE SERVICES

2.1 We will provide the Services in a professional manner and in line with the written documentation we make available to you.

2.2 We will make the hosted parts of the Services available at least 99.5% of the time in each calendar month, not counting scheduled maintenance that we announce at least 48 hours in advance. If we miss this target in any month, you may request a credit of 10% of that month's subscription Fees.

2.3 We provide email and telephone support from 8:00 a.m. to 8:00 p.m. Eastern Time, Monday through Saturday, excluding public holidays.

2.4 We may update the Services from time to time. We will not remove a core feature you rely on during the Initial Term without giving you at least 30 days' notice.

3. TERM AND RENEWAL

3.1 This Agreement begins on the Effective Date and continues for an initial term of thirty-six (36) months (the "Initial Term").

3.2 At the end of the Initial Term, this Agreement will automatically renew for successive thirty-six (36) month periods (each a "Renewal Term") unless you send us written notice of non-renewal by certified mail no more than 120 days and no less than 90 days before the end of the then-current term.

3.3 Fees for any Renewal Term will be our list prices in effect at the start of that Renewal Term.

4. FEES AND PAYMENT

4.1 You agree to pay the Fees listed on the Order Form. Subscription Fees are billed monthly in advance. Processing Fees are deducted from your card settlements as they occur.

4.2 You authorize us to charge the bank account or card you provide for all Fees when they

are due.

4.3 If any amount is not paid within five (5) days after its due date, you will owe a late fee of \$75 for each missed payment plus interest on the unpaid balance at 1.5% per month, as set out in the Fee Shedule.

4.4 We will send you an itemized statement each month. You may dispute any charge in writing within 60 days of the statement date, and we will investigate in good faith and credit any amount charged in error.

4.5 We will not raise the subscription Fees during the Initial Term.

5. PERSONAL GUARANTEE

5.1 In consideration of Kestrelmoor providing the Services, the individual who signs the Order Form on behalf of Customer personally, unconditionally and irrevocably guarantees the full and prompt payment of all amounts Customer owes under this Agreement, now or in the future, and agrees that Kestrelmoor may collect those amounts from the guarantor's personal assets without first pursuing Customer.

5.2 This guarantee survives any termination of this Agreement and any sale or closure of Customer's business.

6. YOUR RESPONSIBILITIES

6.1 You will keep your login details confidential and tell us promptly if you believe your account has been accessed without permission.

6.2 You will use the Services only for lawful business purposes and in line with the card network rules that we make available to you.

6.3 You are responsible for the accuracy of the product, price and tax information you enter into the Services.

6.4 You will give us the information we reasonably request to verify your identity and your business, as required by banking rules that apply to card payment processing.

7. DATA AND CONFIDENTIALITY

7.1 You own your business data, including your customer lists and sales records. We use your data only to provide and improve the Services and to meet our legal obligations.

7.2 We will protect your data using reasonable security measures that meet the Payment Card Industry Data Security Standard.

7.3 Within 30 days after this Agreement ends, we will let you export your data in a standard file format at no extra charge.

7.4 Each party will keep the other party's non-public business information confidential and use it only for the purposes of this Agreement. This duty does not apply to information that is already public or that the law requires a party to disclose.

8. INDEMNITY AND LIMITATION OF LIABILITY

8.1 You will defend, indemnify and hold harmless Kestrelmoor and its officers, employees and agents from and against any and all claims, losses, damages, fines and expenses, including attorneys' fees, arising out of or relating to your use of the Services, whether or not caused in part by Kestrelmoor's own negligence.

8.2 In no event will Kestrelmoor's total liability to you for any claim arising out of

this Agreement exceed the subscription Fees you paid in the one (1) month before the event giving rise to the claim.

8.3 Neither party is liable to the other for lost profits or other indirect losses, except where the law does not allow this exclusion.

9. DISPUTE RESOLUTION

9.1 Before starting any formal proceeding, the parties will try in good faith to resolve any disagreement through discussion between senior representatives for at least 30 days.

9.2 Any dispute, claim or controversy arising out of or relating to this Agreement or the Services (a "Dispute") will be resolved exclusively by final and binding arbitration administered by a private arbitration provider chosen by Kestrelmoor, and you waive any right to a jury trial and any right to bring or take part in a class action, class arbitration or other representative proceeding against Kestrelmoor.

9.3 The arbitration will take place in Wilmington, Delaware, and the arbitrator's decision may be entered as a judgment in any court with jurisdiction.

10. TERMINATION

10.1 Either party may end this Agreement by written notice if the other party materially breaches it and does not fix the breach within 30 days after receiving notice describing it.

10.2 We may suspend the Services immediately if we reasonably believe your account is being used for fraud. If we do, we will tell you why and restore the Services promptly once the issue is resolved.

10.3 When this Agreement ends, you will pay any Fees for Services delivered up to the end date, and we will refund any subscription Fees you prepaid for the period after it.

11. GENERAL

11.1 Notices to you will be sent to the email address on the Order Form. Notices to us must be sent to Kestrelmoor Commerce Systems, Inc., Attn: Legal Department, 400 Harbor Row, Suite 12, Wilmington, DE 19801.

11.2 This Agreement is governed by the laws of the State of Delaware.

11.3 Neither party is responsible for a delay caused by events beyond its reasonable control, such as natural disasters, wide-area power failures or internet outages.

11.4 You may not transfer this Agreement to another business without our consent, which we will not unreasonably withhold. We may transfer it to a company that acquires our business, and we will tell you if we do.

11.5 If any part of this Agreement is found unenforceable, the rest of it stays in effect.

11.6 This Agreement, the Order Form and the Fee Schedule are the entire agreement between the parties about the Services.